



EAGLE MOUNTAIN CITY COUNCIL – SPECIAL SESSION MEETING MINUTES

June 13, 2024 , 4:00 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

6:00 P.M. SPECIAL SESSION – CITY COUNCIL CHAMBERS

ELECTED OFFICIALS PRESENT: Mayor Tom Westmoreland, Councilmembers Donna Burnham, Melissa Clark, Jared Gray, Rich Wood, and Brett Wright.

CITY STAFF PRESENT: Steve Mumford, Interim City Manager; Fionnuala Kofoed, Assistant City Manager/City Recorder; Cliff Strachan, Director of Legislative Affairs; Marcus Draper, City Attorney; Natalie Winterton, Grants Coordinator/Management Analyst; Elizabeth Fewkes, Recording Secretary; and Bailey Ensign, Digital Communications Specialist.

1. WELCOME

Mayor Westmoreland called the meeting to order at 6:02 p.m. and explained the proceedings of the meeting.

2. PUBLIC HEARING – Regarding an Interlocal Agreement with the City of Saratoga Springs and the Town of Fairfield, with the written support of Cedar Fort, to begin the creation of a new school district pursuant to the provisions of Utah Code § 53G-3-301.4

Director of Legislative Affairs Cliff Strachan presented the item and explained that the purpose of the public hearing is to gather community feedback on the proposal. If residents are unable to attend a public hearing, they can submit their comments to council@emcity.org. Additional information is available at eaglemountaincity.com/education.

Timeline:

- The public comment period ends July 5, 2024.
- The City Council vote on the proposal is scheduled for July 16, 2024.
- If approved, a general election to decide the proposal will be held on November 5, 2024.
- The new school district would begin operating in July 2027.

The Alpine School District (ASD) MGT Consulting Study:

- Evaluated population and size, educational needs, community insight, financial implications, logistical challenges, educational quality, and long-term vision for education.
- Considered multiple scenarios including one option to maintain the existing district, two options to explore a two-way split, and three options to explore a three-way split.
- Findings: students are receiving a quality education, voters want a voice on reconfiguration, and the ASD Board needs to choose between a two-district and one-district option.

Enrollment and Financial Projections (2023 vs 2033):

- Enrollment Growth: Expected to increase by 22%.
- Property Tax Valuation Growth: Expected to increase by 435%.

Two-Way Split Projections:

- Western District:
 - Property Value: \$9.1 billion (2022) to \$48.9 billion (2032)
 - Student Enrollment: 24,623 (2023) to 30,042 (2033)
- Remaining ASD Cities:
 - Property Value: \$40.1 billion (2022) to \$101.9 billion (2032)
 - Student Enrollment: 59,791 (2023) to 62,417 (2033)

Financial and Enrollment Projections:

- Projections show property tax valuation growth outpacing enrollment growth.
- The viability of the new district is supported by a conservative review by LRB Public Finance.

LRB Public Finance Report: "We are of the opinion that the new school district is a viable alternative to the existing school district. The benefit obtained in forming a new school district is more localized control and a district that may be more unified in meeting the needs of students in this high-growth area where voters' interests in supporting new facilities may be more aligned with one another."

Interlocal Agreement Recital: "The Parties have determined that it would be in the public interest to cooperate to provide for the improvement and more efficient administration of the public education system for grades K-12 in the incorporated limits of each entity."

ASD is considering staying as a single district or dividing into two districts. Eagle Mountain and neighboring cities are considering creating a new western district with voter decisions limited to the four western cities. If approved by voters, a new school board will be elected in 2025, and the new district will open to students in 2027.

If approved by voters:

- A new school district is created.
- ASD will continue operating all schools until 2027.
- New school board elected in 2025.
- New school board takes office and works on transition.
- New school district welcomes students on July 1, 2027.

Mayor Westmoreland opened the public hearing.

The following residents spoke in favor of placing the interlocal agreement on the ballot: Molly Barrington, Charlotte Ducos, Melanie Castillo, Greg Strong, Aaron Sauser, Jennifer Hepworth, Becky Jones, Angela Duke, and Randy Barker.

Colby Curtis submitted an email in support of placing the interlocal split option on the ballot.

Julie King, the ASD Board of Education representative for Eagle Mountain, Cedar Fort, Fairfield, and Saratoga Springs, expressed her personal opinions. She appreciated the pursuit of the interlocal agreement and shared key statistics to clarify misconceptions about resource allocation. From Fiscal Year 2016 to Fiscal Year 2023, the west side (Cedar Fort, Fairfield, Eagle Mountain, Saratoga Springs) received 32.8% of capital projects funding, which contrasts with the belief that the area is receiving most of the budget. However, the west side experienced 88% of the student growth from Fiscal Year 2013 to Fiscal Year 2024. Additionally, maintenance and operations funding is critical, yet the west side has only received 6.5 of the 12 employee full-time equivalents it should have been allocated, given its student population.

Alan Hyer spoke against the school district split.

Aaron Smith, Jeffrey Hawks, and Banyan Sillito raised questions and concerns that were addressed by staff and the elected officials as indicated below:

City Attorney Marcus Draper explained the logistical implications of splitting a school district and the statutory provisions ensuring an equitable transition. A two-year transition period is in place to resolve these logistical issues. Resources such as technology and school buses will be distributed proportionately based on student population, ensuring fairness in terms of the age and condition of items. Employees will retain their retirement benefits, seniority, and positions, unless they choose to switch to the new district, with a process in place for such transitions. There will be new school board elections in 2025. The newly elected school board members will collaborate to address logistical details during the transition period, ensuring a smooth process before the new school district operates independently.

Mr. Strachan explained that if the Council decides to put the question of creating a new school district on the ballot, a campaign will naturally emerge with community members organizing for or against it. He emphasized the importance of ensuring accurate information is disseminated, as the Council's role is to facilitate the process but not to advocate for a specific position.

Mr. Draper further explained that the City cannot use taxpayer funds to advocate for or against the proposal but will provide neutral information through various channels. Two feasibility studies, by MGT and LRB, both concluded that the school district split is feasible. The ASD initially considered placing both school district split options on the ballot, but the County Clerk ruled that only one option could be presented. The current option being put forward would be decided by all ASD residents. Separately, through an interlocal agreement process, a new school district encompassing Eagle Mountain, Saratoga Springs, Cedar Fort, and Fairfield is being proposed. Similarly, several central cities in the ASD, including Lehi, American Fork, Highland, Cedar Hills, and a portion of Draper, are considering forming a third district, which their voters will decide upon. This makes the three-way split still technically on the ballot, but through different procedural mechanisms. The focus for Eagle Mountain and the neighboring municipalities is solely on the creation of their new school district through the interlocal agreement. Should Eagle Mountain and neighboring municipalities voters approve the ballot measure, a new district would be formed and ASD voters would have no power to veto the decision. Should the measure fail, the whole school district would continue to vote on general obligation bonds to build new schools in Eagle Mountain. The Utah County Clerk will determine the options on the ballot. He clarified that the ballot question for residents of Eagle Mountain, Saratoga Springs, Cedar Fort, and Fairfield is whether to create a new school district, regardless of other concurrent ballot questions affecting different areas of the ASD.

Councilmember Clark emphasized the importance of teacher retention and proper organization of the new district. She noted that the State Legislature has set guidelines to mitigate issues that arose in other school district splits, ensuring a smooth transition with the existing district continuing to operate during the establishment of the new one.

Councilmember Burnham stressed the need to elect a capable new school board to ensure a smooth transition if the proposal passes, urging residents to actively participate in elections.

Councilmember Gray reiterated that the City must remain neutral but offered to discuss the proposal personally with residents outside of the meeting. He and other Councilmembers will be available at

the farmers market to answer questions and provide their perspectives. He emphasized the importance of understanding the feasibility studies.

Mayor Westmoreland stressed the importance of the community's voice, noting that studies have clarified Eagle Mountain's needs and contributions. He acknowledged the complexity of conveying these unique circumstances to nonresidents and underscored the goal of enabling residents to make informed decisions about their school district's future.

Councilmember Wright expressed concern about how to best meet the needs of children in Eagle Mountain. He emphasized the importance of local control and community involvement in decision-making, and supporting the interlocal agreements to allow residents to explore and decide the best course of action for their community.

Councilmember Wood voiced his frustration with the current allocation of resources within the ASD. He praised the efforts of representatives who advocate for Eagle Mountain and Saratoga Springs but noted the limitations they face without sufficient votes. He supports the interlocal agreements to give residents the power to decide their educational future. He also emphasized the need to protect teachers in the transition, highlighting the thorough research and considerations made to ensure their well-being.

3. OTHER GENERAL QUESTIONS AND DISCUSSION

Mayor Westmoreland emphasized the importance of community feedback during the public hearings. He expressed gratitude for the sincere and heartfelt thoughts shared by the community and acknowledged the weight of responsibility felt by the Council regarding the future of the school district. He highlighted the positive relationship with ASD and anticipated a professional and amicable process should a separation occur. He encouraged continued community engagement and expressed confidence in the collaborative spirit of Eagle Mountain residents in addressing the challenges ahead. He thanked the community, highlighting the importance of their voices and expressing confidence in their ability to unite in the spirit of the City's tagline to Ascend Together and shape their destiny through the new school district vote.

Councilmember Clark thanked attendees, especially teachers, for their courage in speaking out. She shared her personal experience as a former teacher and highlighted the dedication of educators. She emphasized concerns about the allocation of Title I funds, noting that 40% is generated on the west side but none of the funds are spent locally. She stressed the need for equitable funding for their children and expressed a commitment to making responsible decisions for the community's benefit.

Councilmember Wright endorsed Councilmember Clark's comments and expressed pride in the community's engagement. He recognized teachers for their dedication and encouraged residents to educate their neighbors about the proposal. He highlighted the importance of understanding the data and thanked those who persistently shared information.

Councilmember Wood agreed with previous comments and urged the community to conduct thorough research on the proposal. He emphasized the importance of understanding the values and priorities of potential school board candidates, as they will be responsible for critical decisions to address issues like school overcrowding. He highlighted the need for effective educational programs and encouraged residents to be diligent in the decision-making process.

Councilmember Burnham thanked everyone for their participation and emphasized the value of public hearings. She highlighted the importance of understanding school funding and noted that the student population in Saratoga Springs and Eagle Mountain would support the new district. She encouraged residents to speak up, regardless of their position on the split, to ensure an informed decision.

Councilmember Gray detailed his extensive engagement with the process and examination of the study findings and associated statutes.

4. ADJOURNMENT

MOTION: *Councilmember Gray moved to adjourn at 7:23 p.m. Councilmember Wood seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

The meeting was adjourned at 7:23 p.m.

Approved by the City Council on July 2, 2024.


Gina Olsen, CMC
Deputy City Recorder

